



Department of Energy
Western Area Power Administration
Rocky Mountain Customer Service Region
P.O. Box 3700
Loveland, CO 80539-3003

December 5, 2013

Mr. Nathan Beauheim, P.E.
Assistant City Engineer
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

Re: Proposed Easement Modification – Western Area Power Administration
SWNE, SENE, 11-13N-67W, Laramie County, Wyoming

Dear Mr. Beauheim,

As we previously discussed, Western Area Power Administration (Western) proposes to install a buried communications cable within a segment of Western's existing electric transmission line easement over a portion of land that the City recently acquired from Swan Ranch, LLC.

The communications cable is associated with the operation of Western's transmission line. We are respectfully asking the City to approve the enclosed Contract and Grant of Easement, which will clarify or modify Western's rights to place the buried cable with the specific portion of the easement as described in Exhibit A of the proposed agreement.

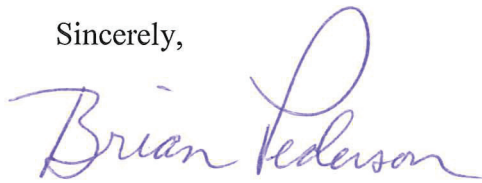
Western is offering \$5,700.00 for the easement modification based on an estimate of just compensation that we completed in accordance with federal law.

For your reference, please find the enclosed documents and information:

1. Proposed Contract and Grant of Easement (Please sign two originals).
2. Legal description and survey map of the portion of the existing easement that we are proposing to modify.
3. A copy of USA's existing easement (Recorded on 9/6/1962 at Book 735 – Page 239).
4. Estimate of just compensation.
5. Several aerial maps that illustrate the area of the proposed easement.

Thank you for your consideration and cooperation with this request. If you have any questions or need any further information, please contact Realty Specialist, Brian Pederson, at 970-461-7220 or by email at bpederson@wapa.com.

Sincerely,

A handwritten signature in blue ink that reads "Brian Pederson". The signature is fluid and cursive, with a large initial "B" and "P".

for

Carey Ashton
Realty Officer

Enclosures

United States of America
Department of Energy
Western Area Power Administration

Cheyenne-Snowy Range Transmission Line
Cheyenne-Happy Jack Transmission Line

CONTRACT AND GRANT OF EASEMENT

THIS AGREEMENT made as of the day of , between the CITY OF CHEYENNE, STATE OF WYOMING, (GRANTOR), whether one or more, and the UNITED STATES OF AMERICA, Department of Energy, Western Area Power Administration (UNITED STATES), represented by the officer executing this agreement, pursuant to the Reclamation Act, Act of June 17, 1902, 32 Stat. 388, and acts amendatory thereof and supplementary thereto, and the Department of Energy Organization Act, Act of August 4, 1977, 91 Stat. 565.

The purpose of this agreement is to redefine the terms and conditions of an existing easement as it is presently located on the GRANTOR's land and to allow for buried fiber optic and other cables in addition to the uses currently allowed in the existing easement. The original easement was acquired by the UNITED STATES pursuant to a Contract and Grant of Easement recorded on September 6, 1962 in Book 735 at Page 239, in the official records of Laramie County, Wyoming. The legal description in Exhibit A, attached hereto and made a part hereof, includes a portion of the right-of-way acquired in the above referenced easement. The following terms and conditions apply to the entire easement area, which is described in Exhibit A.

WITNESSETH:

That the parties hereto covenant and agree as follows:

1. The GRANTOR, for and in consideration of the sum of Five Thousand Seven Hundred Dollars (\$5,700.00) and the provisions contained in this agreement, does hereby grant and convey to the UNITED STATES OF AMERICA, and its successors, assigns, licensees, and lessees, a perpetual easement and right-of-way for electric power transmission purposes and buried cable purposes, in, upon, over, and under the land described in Exhibit A, which is attached hereto and made a part hereof.

2. The grant of easement shall include the unimpeded right to enter the above described easement area and to locate, survey, construct, reconstruct, trench, operate, maintain, repair, rebuild, upgrade, remove, permit the attachment of wires of others, as well as appurtenances for communication facilities along with the right to patrol the transmission lines and buried cables.

3. The grant shall also include the present and future right to cut down and clear away or otherwise remove any and all brush, timber, trees, fire hazards, unauthorized structures or any other materials deemed by the UNITED STATES to interfere with the safe operation and maintenance of the transmission lines and buried cables, provided however, that growing crops, excluding orchards, shall not be considered to be fire hazards. The UNITED STATES may trim, cut, or remove trees or branches over or on or extending within the easement area. All materials so removed shall become the property of the UNITED STATES and shall be disposed of by the UNITED STATES in any manner it deems suitable.

4. The UNITED STATES shall exercise due care and diligence in the exercise of rights and privileges granted herein. The UNITED STATES agrees to repair or reasonably compensate the GRANTOR for damage to agricultural crops (excluding orchards), fences, irrigation systems, drainage systems or other improvements within the easement right-of-ways that occurs as a result of the exercise of the rights granted herein.

5. The GRANTOR is the sole owner of the property over which this easement is granted, and has the lawful right to convey this easement interest.

6. The GRANTOR shall assist the UNITED STATES in procuring and recording all assurances of title and affidavits which the GRANTOR may be advised by the UNITED STATES are necessary. The UNITED STATES shall pay to record this instrument and for the procurement of abstracts or title insurance.

7. In the event that liens or encumbrances other than those expressly provided herein do exist, the UNITED STATES may, at its option, remove any and all such outstanding liens and encumbrances by reserving from the purchase price herein set forth the necessary amount and discharge same with the money so reserved, but this provision shall not be construed to authorize the incurrence of any lien or encumbrances as against this contract, nor an assumption of any lien or encumbrance by the UNITED STATES.

8. Should the UNITED STATES initiate court action to acquire good title from the GRANTOR to the above described easement, GRANTOR agrees that this instrument shall be evidence of fair market value for purposes of establishing value of the easement acquired by the UNITED STATES.

9. The GRANTOR shall have the right to cultivate, graze, use, occupy, and have access to and across the easement area described herein for any purposes which will not constitute a safety hazard or interfere with any of the rights and privileges herein granted to the UNITED STATES. The UNITED STATES will notify the GRANTOR in writing of any activity of the GRANTOR within the easement area that constitutes a safety hazard, or interferes with any of the rights and privileges herein granted to the UNITED STATES.

10. The following activities are prohibited within the easement area unless written permission is granted by the UNITED STATES.

(a) GRANTOR shall not erect any structures; by way of example, structures shall include, but are not limited to buildings, mobile homes, signs, light standards, storage tanks, septic systems, swimming pools, tennis courts, or similar facilities.

(b) GRANTOR shall not drill wells or conduct mining operations.

(c) GRANTOR shall not construct, install or operate above-ground mechanical irrigation facilities.

(d) GRANTOR shall not appreciably change the character of existing topography, normal farming practices excluded.

(e) GRANTOR shall not plant trees, orchards, shrubs, or bushes within the easement.

(f) GRANTOR shall not construct roads parallel to the transmission line. Roads constructed across the easement area shall be in accordance with all applicable safety codes and shall be a minimum of 20 feet from any transmission line structure.

11. The UNITED STATES shall not unreasonably withhold permission, and it shall be the intention of the UNITED STATES to allow the GRANTOR a reasonable right to use and have access across the easement area when and where such use shall not interfere with the rights of the UNITED STATES as provided herein. If, however, GRANTOR proceeds without permission to conduct any of the prohibited activities named in this article, the UNITED STATES shall have the right, upon discovery of such activity, to take any action deemed appropriate to prevent such activity including the right to remove if necessary.

12. In the event of permanent abandonment of any or all rights to the easement granted herein to the UNITED STATES, said abandonment shall be effected by the execution and recording of a quitclaim deed by the UNITED STATES in favor of the GRANTOR, or its successors, and the easement granted herein, or any portions therein abandoned, shall terminate. The UNITED STATES, or its assigns, shall have the right to remove, within a reasonable time, all structures, facilities, and equipment placed on the easement by or on behalf of the UNITED STATES, from such abandonment area whether before or after execution of the quitclaim deed.

13. The provisions hereof shall inure to the benefit of and be binding upon the heirs, executors, personal representatives, administrators, successors, and assigns of the GRANTOR, and the licensees, lessees, and assigns of the UNITED STATES.

IN WITNESS WHEREOF, the parties hereto have signed their names, the day and year first above written.

GRANTOR:
CITY OF CHEYENNE,
STATE OF WYOMING

UNITED STATES OF AMERICA

By: _____

By: _____
Steven W. Webber

Title: _____

Title: Lands Team Lead

ACKNOWLEDGMENT

STATE OF WYOMING }
COUNTY OF LARAMIE }

The foregoing instrument was acknowledged before me this _____ day of _____,
_____ by _____ as _____ for the
City of Cheyenne, State of Wyoming.

WITNESS my hand and official seal.

(Seal)

Notary Public
My commission expires: _____

EXHIBIT A

Facility: CH-SNG
Tract No. 100EF

WESTERN AREA POWER ADMINISTRATION Cheyenne – Snowy Range Fiber Easement

A portion of Tract "A" as described in Book 735, Page 239, County of Laramie, State of Wyoming, also being a portion of the South Half of the Northeast Quarter (S $\frac{1}{2}$ NE $\frac{1}{4}$) of Section 11, Township 13 North, Range 67 West, of the 6th Principal Meridian and Baseline, said County of Laramie, being a strip of land 30.0 feet in width, 15.0 feet to the left and right of the following described centerline:

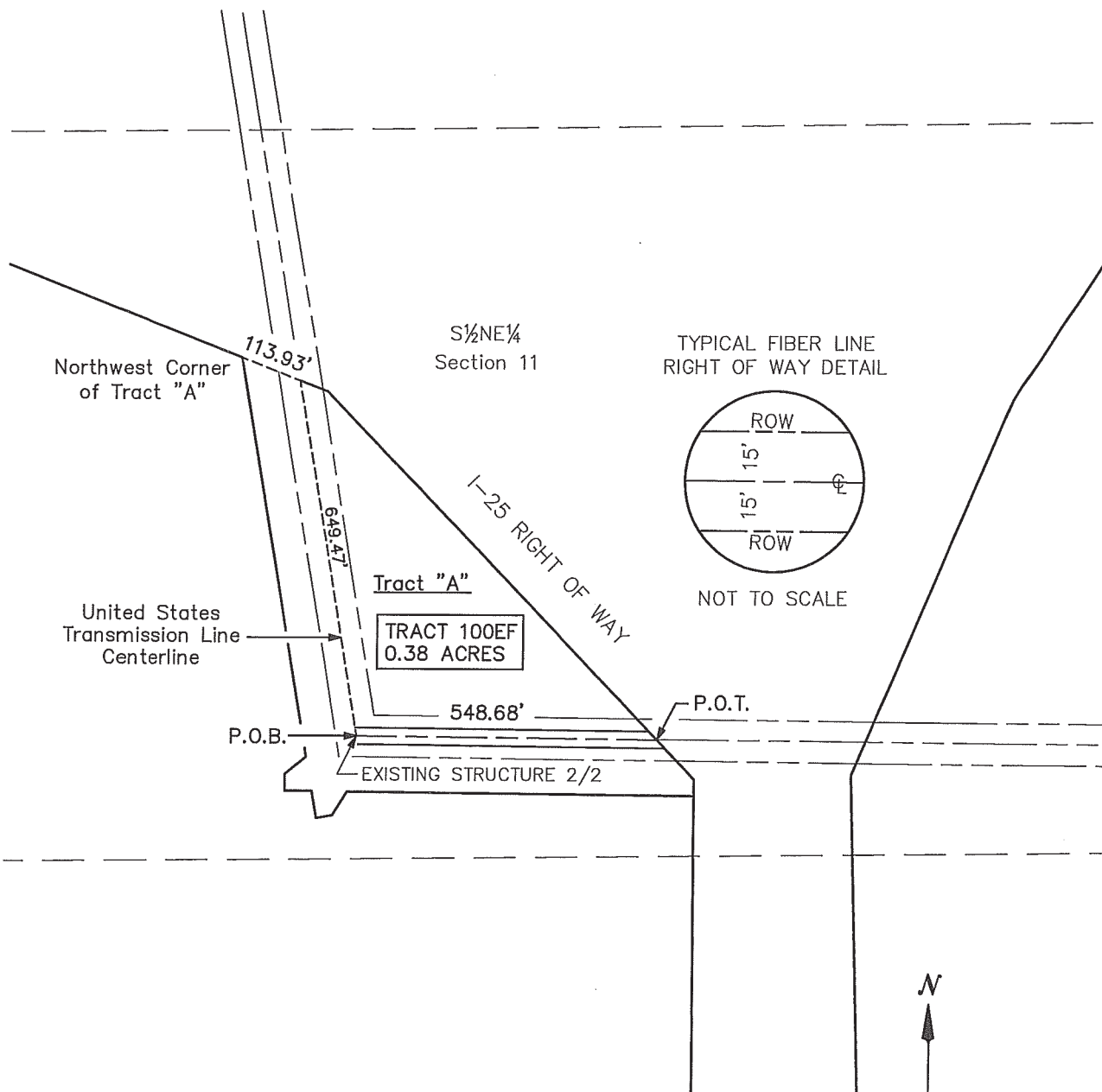
Commencing at the Northwest corner of said Tract "A";

Thence southeasterly, along the Interstate 25 right of way, a distance of 113.93 feet, to the centerline of an existing United States transmission line;

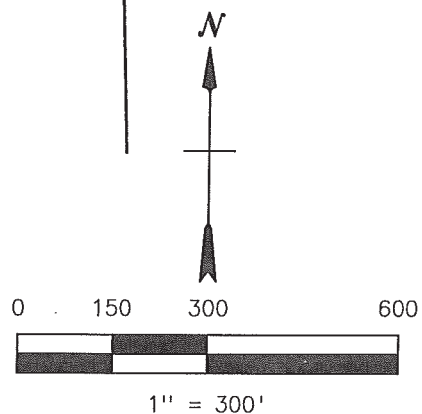
Thence southeasterly along said centerline, a distance of 649.47 feet, to the centerline of existing Structure 2/2, and the **POINT OF BEGINNING**;

Thence easterly, along said transmission line centerline, a distance of 548.68 feet, to the West line of said Interstate 25 right of way, and the **POINT OF TERMINATION**.

Containing 0.38 acres, more or less.



A PORTION OF TRACT "A" AS DESCRIBED IN BOOK 735, PAGE 239, COUNTY OF LARAMIE, STATE OF WYOMING, ALSO BEING A PORTION OF THE SOUTH HALF OF THE NORTHEAST QUARTER (S½NE¼) OF SECTION 11, TOWNSHIP 13 NORTH, RANGE 67 WEST, OF THE 6TH PRINCIPAL MERIDIAN AND BASELINE, SAID COUNTY OF LARAMIE.



LEGEND

- ◆ SECTION CORNER (FOUND OR SET)
- MONUMENT
- CALCULATED CORNER
- SECTION LINE
- OWNERSHIP LINE
- CENTERLINE
- TRANSMISSION LINE RIGHT-OF-WAY
- ACCESS ROAD RIGHT-OF-WAY
- BEARING AND DISTANCE TIES

UNITED STATES DEPARTMENT OF ENERGY
WESTERN AREA POWER ADMINISTRATION
CORPORATE SERVICES OFFICE - LAKEWOOD, COLORADO

CHEYENNE - SNOWY RANGE
TRANSMISSION LINE
LARAMIE COUNTY, WYOMING
FIBER EASEMENT TRACT PLAT

DESIGNED J.HOPKINS APPROVED S.WEBBER

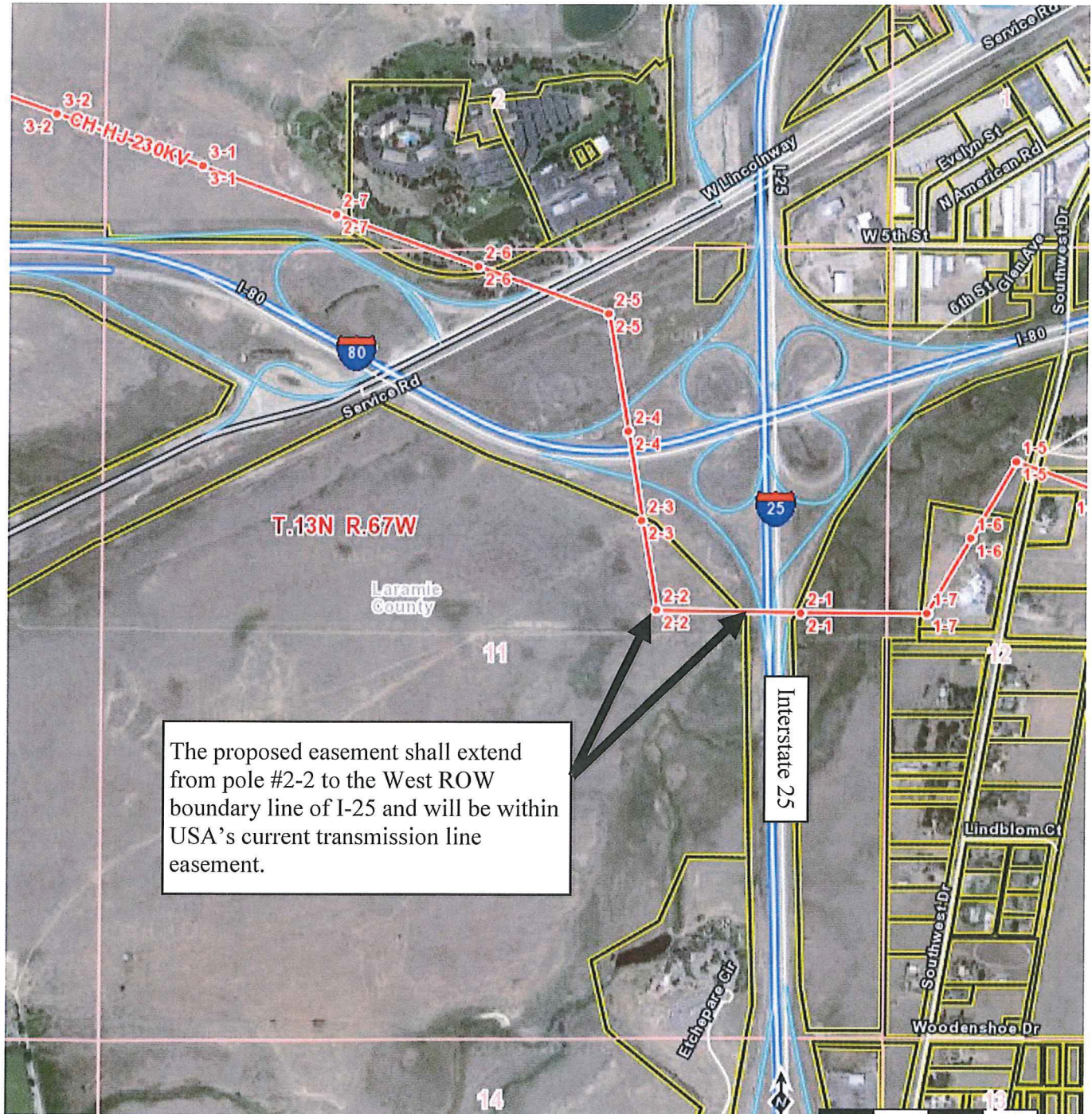
C
A
E

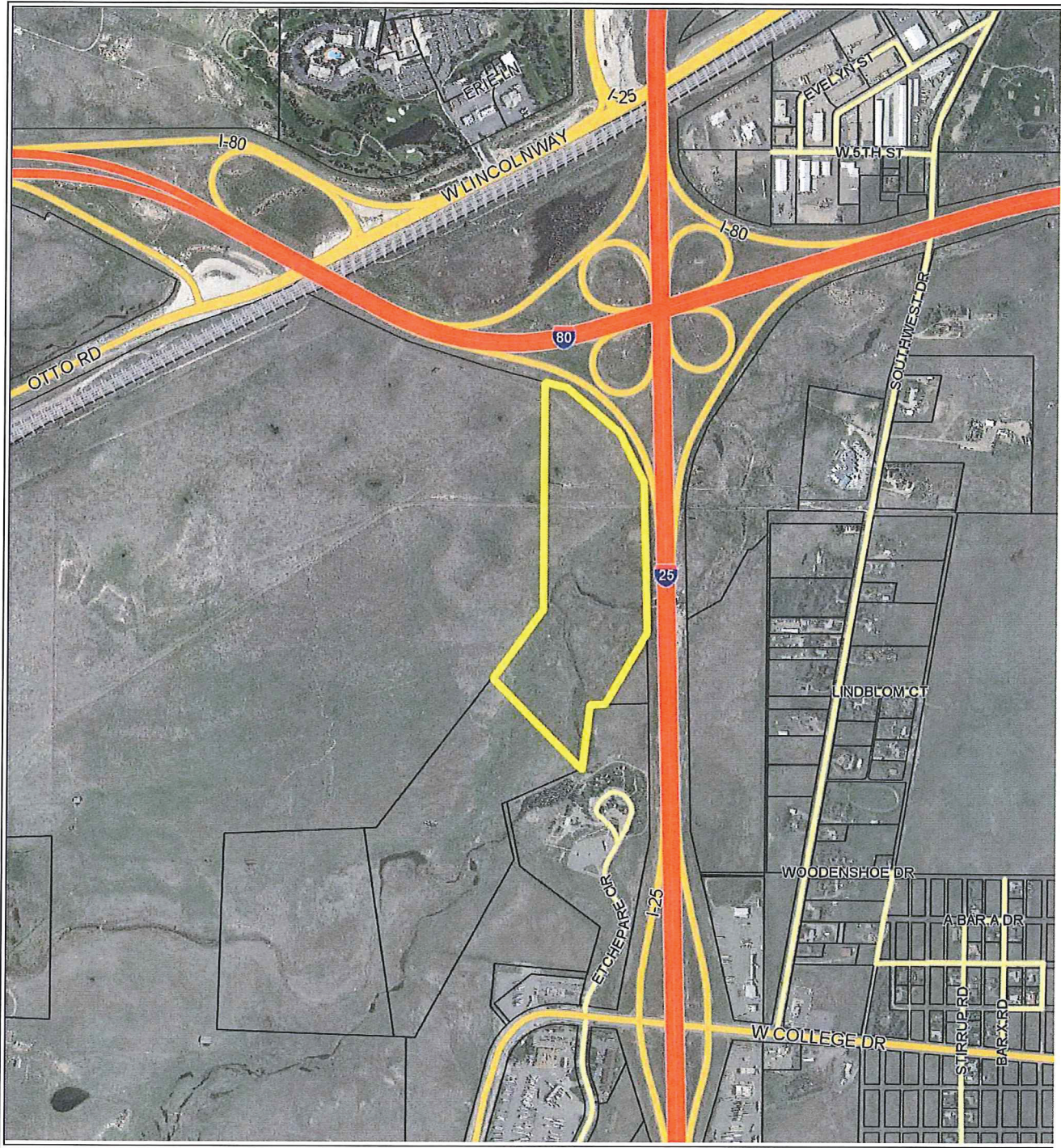
OCTOBER 2013

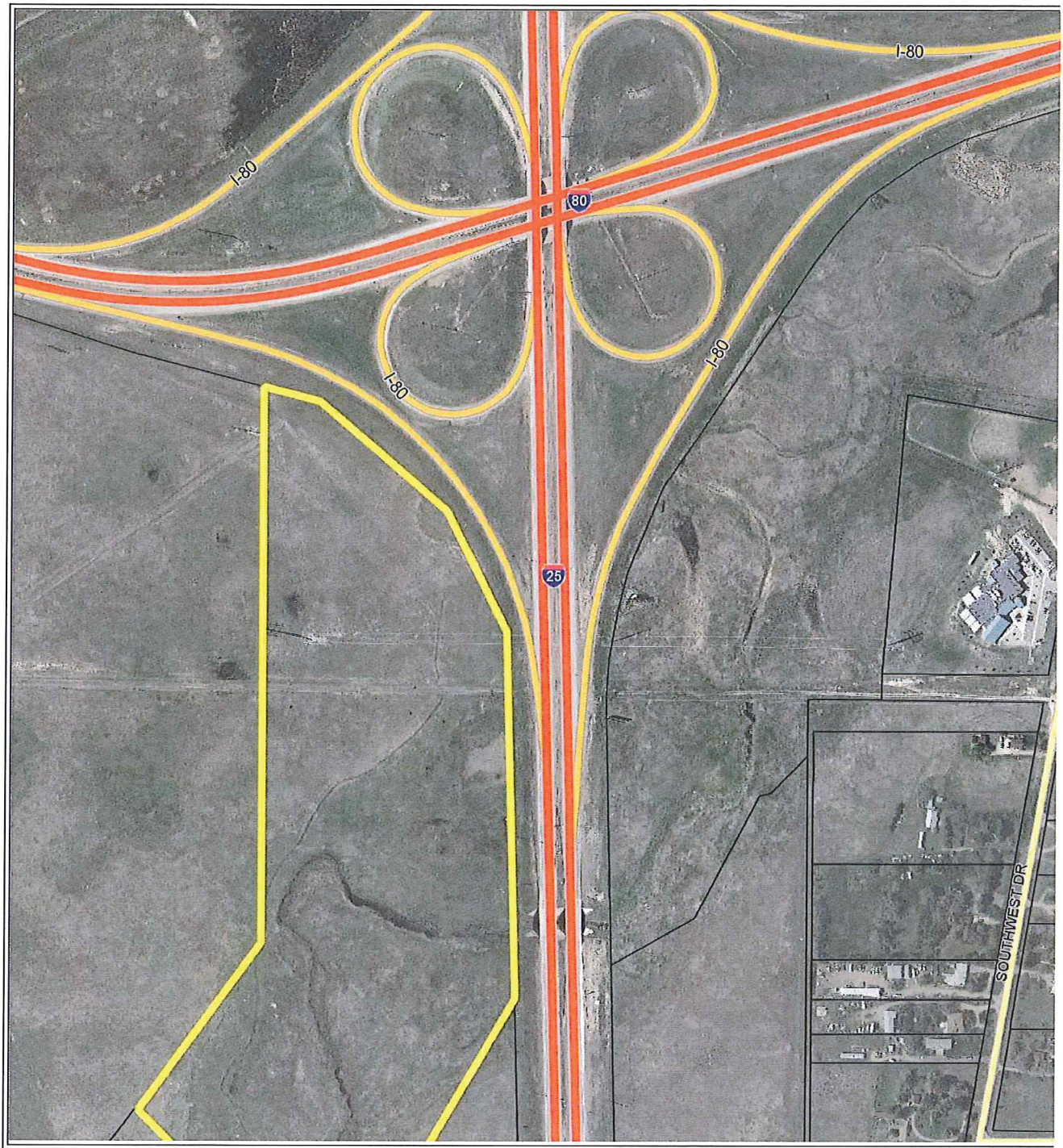
CH-SNG

100EF

Proposed easement for electric transmission line and buried cable purposes
SWNE & SENE, Sec. 11, T13N, R67W
Laramie County, Wyoming







CITY OF CHEYENNE, WYOMING

Appraisal Waiver
Estimate of Just Compensation

In accordance with the waiver provision of 49 CFR Part 24, Subpart B, Section 24.102(c) (2) of the regulations implementing the Uniform Relocation Assistance and Real Property Acquisition Policy Act of 1970, it has been determined that an appraisal is unnecessary because the valuation process is uncomplicated and the just compensation is estimated at \$10,000 or less, based on a review of available data.

Project: Cheyenne – Snowy Range 230-kV (Buried Communications Cable)
(Buried from Structure #2/2 to the West Interstate 25 ROW Line)

Tract: 100EF

Grantor: City of Cheyenne

Easement Size: 0.38 Acres +/-

LEGAL DESCRIPTION: A portion of the parcel described as Tract A in the Contract and Grant of Easement, which was recorded on September 6, 1962 in Book 735 at Page 239, in the Laramie County, Wyoming Clerk and Recorder's Office. The legal description of the proposed 0.38 acres easement area is attached.

LOCATION: Situated within the SWNE & SENE of Section 11, T.13N., R.67W. of the 6th P.M., County of Laramie, State of Wyoming. The parcel is generally situated at the southwest corner of the intersection of Interstates 25 and 80 in Southwest Cheyenne.

PROJECT DESCRIPTION: Western Area Power Administration is proposing to bury a communications cable from Structure Number 2/2 on the Cheyenne – Snowy Range 230-kV Transmission Line to the west right of way line of Interstate 25. The communications cable will connect to the Eaglenet fiber optic project, which is being installed within the Interstate 25 right of way. The buried cable project requires USA's existing easement over the City of Cheyenne's property to be modified to add or clarify the right to bury communications cable, which is associated with Western's transmission lines.

LARGER PARCEL: A 40.56 acres +/- parcel of land. The City reportedly acquired the parcel from Swan Ranch, LLC. In 2011 for open space and natural areas purposes.

ZONING: The property is zoned A-2 (Agriculture).

PRESENT USES: Natural area – Open Space. The parcel is encumbered by USA's existing transmission line and two oil pipelines.

MARKET SALES DATA: The City of Cheyenne acquired the property from Swan Ranch, LLC by Warranty Deed recorded on December 15, 2011, which was recorded in Book 2250 at Page 996. The deed states the consideration was \$10.00 and other good and valuable consideration.

Transaction data for 9 comparable land sales in Laramie County, Wyoming, and Larimer County, Colorado was analyzed. The comparable sales ranged from \$15,189 to \$57,198 per acre. The median sales price was \$24,002 per acre. The average sales price of the comparable land sales was \$30,371 per acre.

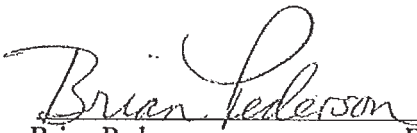
For purposes of this value estimate, \$30,000 per acre was deemed to be a fair estimate of the fair market value of the larger parcel. The estimated value of the fee simple estate was adjusted by 50% for the impact of the proposed buried cable easement.

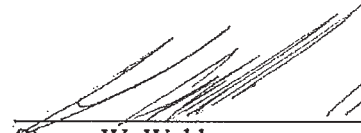
The estimated value of the proposed easement was calculated as follows:

0.38 Acres (16,553 sq. ft.) +/- x \$30,000 per ~~acre~~ x 50% = \$5,700.00

Recommended by:

Concur:

 11/19/13
Brian Pederson Date
Realty Specialist

 11-20-13
Steven W. Webber Date
Lands Team Lead

Facility: CH-SNG
Tract No. 100EF

WESTERN AREA POWER ADMINISTRATION
Cheyenne – Snowy Range Fiber Easement

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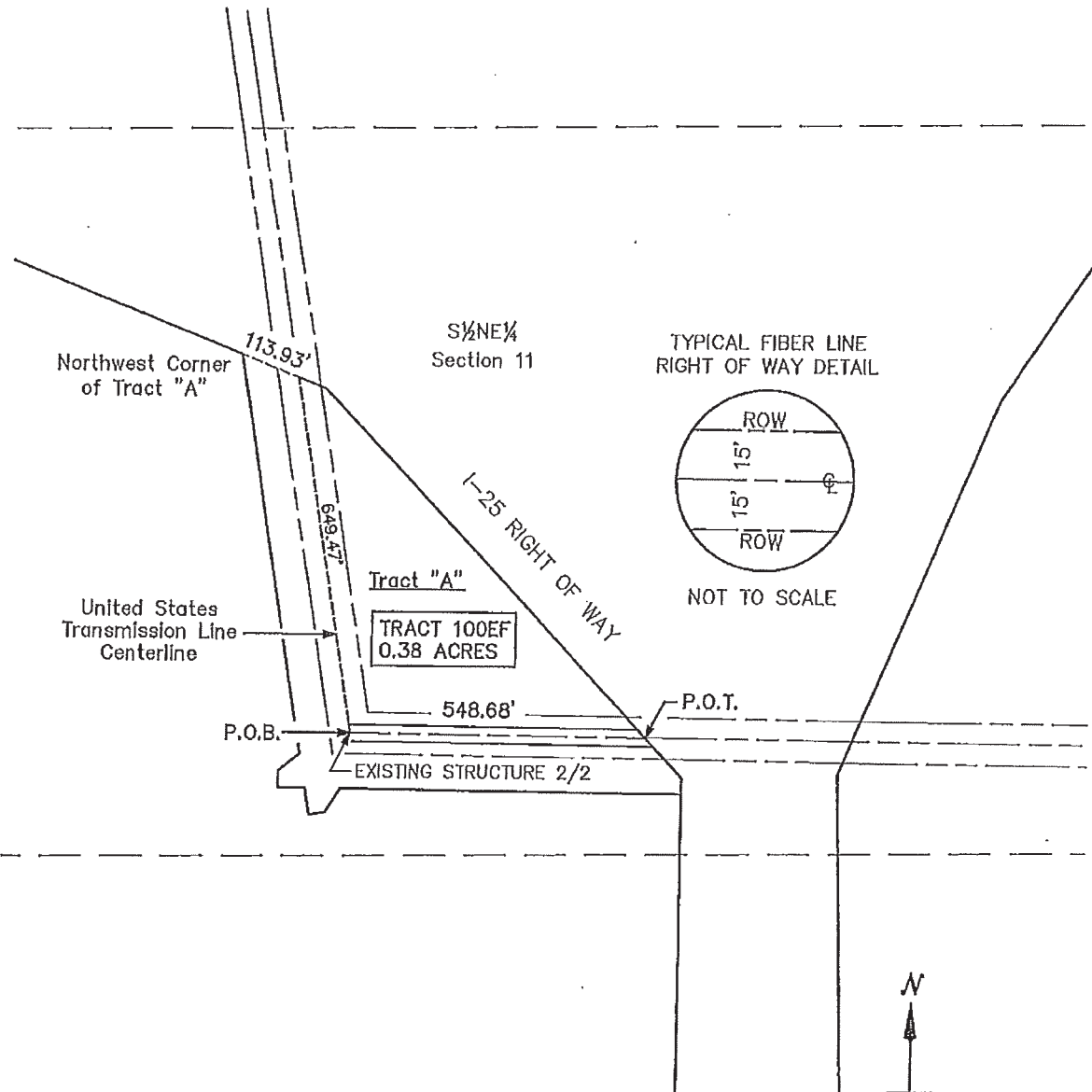
Commencing at the Northwest corner of said Tract "A";

Thence southeasterly, along the Interstate 25 right of way, a distance of 113.93 feet, to the centerline of an existing United States transmission line;

Thence southeasterly along said centerline, a distance of 649.47 feet, to the centerline of existing Structure 2/2, and the **POINT OF BEGINNING**;

Thence easterly, along said transmission line centerline, a distance of 548.68 feet, to the West line of said Interstate 25 right of way, and the **POINT OF TERMINATION**.

Containing 0.38 acres, more or less.



A PORTION OF TRACT "A" AS DESCRIBED IN BOOK 735, PAGE 239, COUNTY OF LARAMIE, STATE OF WYOMING, ALSO BEING A PORTION OF THE SOUTH HALF OF THE NORTHEAST QUARTER ($S\frac{1}{2}NE\frac{1}{4}$) OF SECTION 11; TOWNSHIP 13 NORTH, RANGE 67 WEST, OF THE 6TH PRINCIPAL MERIDIAN AND BASELINE, SAID COUNTY OF LARAMIE.

LEGEND

- ◆ SECTION CORNER (FOUND OR SET)
- MONUMENT
- CALCULATED CORNER
- SECTION LINE
- OWNERSHIP LINE
- CENTERLINE
- TRANSMISSION LINE RIGHT-OF-WAY
- ACCESS ROAD RIGHT-OF-WAY
- BEARING AND DISTANCE TIES

UNITED STATES DEPARTMENT OF ENERGY WESTERN AREA POWER ADMINISTRATION CORPORATE SERVICES OFFICE - LAKEWOOD, COLORADO			
CHEYENNE - SNOWY RANGE TRANSMISSION LINE LARAMIE COUNTY, WYOMING			
FIBER EASEMENT TRACT PLAT			
DESIGNED J. HOPKINS		APPROVED S. WEBBER	
CA	OCTOBER 2013	CH-SNG	100EF

COMPARABLE LAND SALES (Cheyenne, Wyoming)

11/19/13

NO.	LOCATION	S-T-R	COUNTY	DATE	SALES PRICE	ACRES	PRICE/ACRE	GRANTOR/GRANTEE	RECORDING	APN	USE/ ZONING	COMMENTS
1	S of Cheyenne		Laramie	12/18/10	\$3,717,846	65	\$57,198	Swan Ranch, LLC to John Platt	12/18/2010	Lot 1-3, Blk 2 Swan Ranch Rail Park 1st Flg	IND	New interchange, water, and rail service planned.
2	Southwest Drive		Laramie	6/8/11 through 2012	\$6,000,000	418	\$14,354	Swan Ranch, LLC to City of Cheyenne	6/6/11 - 2012		RES	Ind Land. Purchased by the City for open space.
3	SE Cheyenne	Pt S4 & 5-13N-66	Laramie	Aug. 2011	\$1,400,000	66.66	\$21,002	RLM Company to Real- Estate Holding Company			AGR	Vacant Raw Land
4	SW Cheyenne		Laramie	Dec. 2010	\$1,786,525	54.9	\$32,500	Swan Ranch, LLC to Midwestern		Lot 3, Blk 1, Swan Ranch Rail Park		
5	Windsor, CO	22-6N-68	Weld	Jan. 2009	\$800,000	52.81	\$15,149	Norton Aman, LLC to Poudre Valley Health Care, Inc.				Northern Colo Sale
6	SW Cheyenne		Laramie	Dec. 2010	\$1,285,000	25	\$51,400	Swan Ranch, LLC to Jebro, Inc.		Pt Lot 2, Blk 1, Swan Ranch Rail Park		Unimproved vacant land. Superior access & water.
7	Fort Collins, CO	19-1N-66	Larmiter	Jan. 2008	\$715,000	37.77	\$18,929	Donald Rittenhouse to City of Aurora				Unimproved vacant land.
8	NW Cheyenne	Pt S4 & 5, 13N-66	Laramie	Oct. 2008	\$5,200,000	134	\$38,806	Old Horse Pasture, Inc. to Frontier Refining, Inc. ARP & Hammond				Unimproved vacant land.
9	SE Cheyenne	Pt S4 & 5, 13N-66	Laramie	Apr. 2007	\$1,600,000	66.66	\$24,002	Hardware Co. to RLM Company				Unimproved vacant land. 2007 Sale.

RECORDED SEP 6 1962 AT 4:33 PM O'GLOCK

Contract No. 14-06-703-1336

RECEPTION NO. 988377 LESTER R. GOPP, Recorder

239

UNITED STATES
DEPARTMENT OF THE INTERIOR
BUREAU OF RECLAMATION

Relocation of Kortes-Cheyenne and Seminoe-Cheyenne
115-Kv Transmission Line

Missouri River Basin Project

CONTRACT AND GRANT OF ELECTRIC TRANSMISSION LINE EASEMENT

THIS CONTRACT, made this 10th day of Aug, 1962, pursuant to the Act of Congress approved June 17, 1902 (32 Stat. 388) and acts amendatory thereof or supplementary thereto, between the UNITED STATES OF AMERICA, hereinafter referred to as United States and represented by the officer executing this instrument, his duly appointed successor, or his duly authorized representative, hereinafter called the contracting officer, and the Warren Livestock Company, a corporation, hereinafter referred to as vendor:

WITNESSETH:

The following grant and the following mutual covenants by and between the parties:

1. For the consideration hereinafter expressed, vendor does hereby grant unto the United States, its successors and assigns, a perpetual easement, together with the right and privilege to construct, reconstruct, operate, inspect, and maintain two electric transmission lines, consisting of a double line of structures supporting one or more electric power circuits of the United States, together with all poles, towers, crossarms, cables, wires, guys, supports, fixtures, across the following described land situated in the County of Laramie, State of Wyoming, to wit:

Four tracts of land in the Northeast Quarter ($NE\frac{1}{4}$) of Section Eleven (11) and the Northwest Quarter ($NW\frac{1}{4}$) of Section Twelve (12), Township Thirteen (13) North, Range Sixty-seven (67) West of the Sixth Principal Meridian, more particularly described by metes and bounds as follows:

Tract "A"--Beginning at the point of intersection of a Transmission Line centerline survey with the southerly right-of-way boundary of Interstate Highway 25 - Ramp A, whence the northeast corner of said Section 11 bears N. $44^{\circ} 19'$ E. a distance of 2,468 feet, more or less (said centerline survey being for the Kortes-Cheyenne 115-Kv Transmission Line relocation);

thence northwesterly along said highway right-of-way boundary line a distance of 40.6 feet, more or less to a point;

thence S. $9^{\circ} 44'$ E. a distance of 730 feet, more or less, to a point;

thence S. $50^{\circ} 36'$ W. a distance of 49.3 feet, more or less, to a point;

thence S. $0^{\circ} 33'$ W. a distance of 30 feet to a point;

thence S. 89° 27' E. a distance of 49 feet to a point;
thence S. 9° 44' E. a distance of 49 feet to a point;
thence N. 80° 16' E. a distance of 30 feet to a point;
thence N. 32° 10' E. a distance of 50.3 feet, more or less,
to a point;

thence S. 89° 27' E. a distance of 634 feet, more or less,
to a point on the westerly right-of-way boundary line of said
Interstate Highway 25;

thence northerly along said highway right-of-way boundary
line a distance of 35.0 feet, more or less, to the point of inter-
section of the said transmission line survey with the said highway
right-of-way boundary line;

thence continuing northerly along said highway right-of-way
boundary line a distance of 90.1 feet, more or less, to a point;

thence N. 89° 27' W. a distance of 590 feet, more or less,
to a point;

thence N. 9° 44' W. a distance of 616 feet, more or less,
to a point on the said highway Ramp A right-of-way boundary line;

thence northwesterly along said highway right-of-way
boundary line a distance of 104.4 feet, more or less, to the
point of beginning.

Tract "B"--Beginning at a point on the east boundary line of said
Section 11, from which the northeast corner of said Section 11
bears northerly 2,424 feet, more or less;

thence N. 89° 27' W. a distance of 632 feet, more or less,
to a point on the easterly right-of-way boundary line of said
Interstate Highway 25;

thence southerly along said highway right-of-way boundary
line a distance of 90.1 feet, more or less, to the point of
intersection of said transmission line survey with the said
highway right-of-way boundary line;

thence continuing southerly along said highway right-of-way
boundary line a distance of 35.0 feet, more or less, to a point;

thence S. 89° 27' E. a distance of 629 feet, more or less, to
a point on the east boundary of said Section 11, situate S. 125.0
feet, more or less, from the point of beginning;

thence continuing S. 89° 27' E. a distance of 292 feet, more
or less, to a point;

thence S. 29° 39' E. a distance of 56 feet to a point;

thence N. 60° 21' E. a distance of 26 feet to a point;

thence N. 29° 39' W. a distance of 56 feet to a point;

thence N. 30° 10' E. a distance of 1,141 feet, more or
less, to a point on the existing Kortse-Cheyenne Transmission Line
southerly right-of-way boundary line;

thence northwesterly along said transmission line right-of-way
boundary line a distance of 35.6 feet, more or less, to the point of
intersection of said transmission line right-of-way boundary line
and said transmission line relocation centerline survey;

thence continuing northwesterly along said transmission line right-of-way boundary line a distance of 91.6 feet, more or less, to a point;

thence S. 30° 10' W. a distance of 1,061 feet, more or less, to a point;

thence N. 89° 27' W. a distance of 235 feet, more or less, to the point of beginning.

Tract "C"--Beginning at the point of intersection of a Transmission Line centerline survey with the southerly right-of-way boundary line of the Seminoe-Cheyenne 115-Kv Transmission Line, from which the northwest corner of said Section 12 bears N. 29° 36' W. a distance of 1,654 feet, more or less (said centerline survey being for the Seminoe-Cheyenne 115-Kv Transmission Line relocation);

thence northwesterly along said transmission line right-of-way boundary line a distance of 25.44 feet to a point;

thence S. 30° 10' W. a distance of 2.5 feet, more or less, to a point on the Kortess-Cheyenne Transmission Line right-of-way boundary line;

thence southeasterly along the Kortess-Cheyenne Transmission Line right-of-way boundary line a distance of 50.88 feet to a point;

thence N. 30° 10' E. a distance of 2.5 feet, more or less, to a point on the Seminoe-Cheyenne Transmission Line right-of-way boundary line;

thence northwesterly along the Seminoe-Cheyenne Transmission Line right-of-way boundary line a distance of 25.44 feet to the point of beginning.

Tract "D"--Beginning at a point on the northerly right-of-way boundary line of the Seminoe-Cheyenne Transmission Line, from which the northwest corner of said Section 12 bears N. 31° 07' W. a distance of 1,630 feet, more or less;

thence northwesterly along the Seminoe-Cheyenne Transmission Line right-of-way boundary line a distance of 95.5 feet, more or less, to a point;

thence N. 19° 29' E. a distance of 5 feet to a point;

thence S. 70° 31' E. a distance of 65 feet to a point;

thence N. 30° 10' E. a distance of 65 feet to a point;

thence S. 59° 50' E. a distance of 27 feet to a point;

thence S. 13° 14' E. a distance of 38.4 feet, more or less,

to a point;

thence S. 30° 10' W. a distance of 32 feet to a point on the northern right-of-way boundary line of the Seminoe-Cheyenne Transmission Line;

thence northwesterly along the Transmission Line right-of-way boundary line a distance of 23 feet to the point of beginning.

Total acres for Tracts "A," "B," "C," and "D" is 9.77.

2. The grant of easement herein contained shall include the perpetual right to enter upon said premises, construct, reconstruct, operate, maintain,

Checked as to engineering data:

By *[Signature]*

Office Engineer,
Bureau of Reclamation

and make necessary replacements in connection with said transmission lines, together with the present and future right to clear said right-of-way or to trim trees to the extent deemed necessary by the contracting officer to protect the rights and privileges herein granted, and to keep the same clear of brush, timber, inflammable structures and fire hazards, provided that fire hazards shall not be interpreted to include growing crops. All brush, timber or inflammable structures removed pursuant to the terms hereof shall become the property of the United States and may be disposed of by sale, burning, or otherwise; Provided, That said rights shall only be exercised in such a manner that no fire hazard shall be created hereby. The grant of easement shall not preclude the right to cultivate, use, and occupy said premises for any purposes which will not, by the determination of the contracting officer, constitute a hazard to life or limb, interfere with any of the rights and privileges herein granted to the United States, or endanger any of its property, but said right of cultivation, use and occupancy shall not extend to or include the erection of any structure, including the drilling of wells, or permission to the public to use any part thereof, without advance written permission of the contracting officer. The United States shall exercise due care and diligence in the exercise of the rights and privileges herein granted to it. In case of permanent abandonment of said right-of-way, the title and interest herein granted shall end, cease, and determine and title shall revert to the then owner and all structures owned by the United States, its successors, and assigns shall be removed.

3. The grant of easement herein contained is subject to the rights-of-way of any nature whatsoever of record or in use, and any outstanding mineral rights.

4. It is a condition precedent to the payment to the vendor of the sum named herein that the title to the premises described herein shall be vested in the vendor, subject only to the interest of the United States hereunder and to the matters set out in Article 3 hereof and to such other defects, interest, or encumbrances as may be acceptable to the United States.

5. It is understood and agreed that if the Secretary of the Interior determines that the interest acquired hereunder by the United States should also be the subject of acquisition through judicial procedure, either to procure a safe title or for any other reason, then the compensation to be claimed by the vendor and the award to be made for said interest in said proceeding shall be upon the basis of the consideration herein provided.

6. Vendor warrants that no person or agency has been employed or retained to solicit or secure this contract upon an agreement or understanding for a commission, percentage, brokerage, or contingent fee, excepting bona fide employees or bona fide established commercial agencies maintained by the vendor for the purpose of securing business. For breach or violation of this warranty, the Government shall have the right to annul this contract without liability or in its discretion to require the vendor to pay, in addition to the contract price or consideration, the full amount of such commission, percentage, brokerage, or contingent fee.

7. As complete consideration for the above grant of easement, the United States agrees to pay vendor the sum of Seven Thousand and no/100 Dollars (\$7,000), and if damage occurs to drainage tile, fences, crops, trees, vines, seedlings, and improvements within the said right-of-way as a result of and during the construction, operation and maintenance of the transmission line, payment will be made by the United States to the vendor, his successors and assigns, on the basis of an appraisal approved by the Secretary of the Interior or his duly authorized representative.

8. Nothing contained herein shall preclude the vendor or his successors and assigns from asserting any rights or claims accorded under applicable law (and which are not otherwise provided for herein) for reimbursement for damages resulting from the existence or presence of the transmission line to be constructed hereunder.

9. No member of or Delegate to Congress or Resident Commissioner shall be admitted to any share or part of this contract or to any benefit that may arise herefrom but this restriction shall not be construed to extend to this contract if made with a corporation or company for its general benefit.

IN WITNESS WHEREOF, the parties hereto have signed their names the day and year first above written.

THE UNITED STATES OF AMERICA

By R. M. Sensintoff
Project Manager

ATTEST:

Jack D. Meyer
Assistant Sec.

Warren Livestock Company, a corporation

Francis S. Harper
Pres.



CERTIFICATE OF ACKNOWLEDGMENT

STATE OF Wyoming)
 COUNTY OF Laramie)

On this 10th day of August, 1962, before me,
 a Notary Public in and for the above-said County and State, personally
 came the above-named Francis E. Warren, and
~~President~~ Jack J. Shaker of the Warren Livestock Company,
 a corporation, who are personally known to me to be the identical persons
 whose names are affixed to the foregoing instrument, who are President
 and Asst. Secretary of said corporation, and they acknowledge the
 said instrument to be their free and voluntary act and deed and the free
 and voluntary act and deed of said corporation.

Witness my hand and official seal the day and year last aforesaid.

Minnie Froshelner
 Notary Public

My Commission Expires: May 23, 1963



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~~registered~~
~~index~~
~~abstract~~

The State of Wyoming }
County of Laramie } SS

This instrument is for record
at 433

A.D. 1901

Book 13561

Page 239-244

John A. ...

County Clerk & Ex-Officio Register of Deeds
By *John A. ...* Deputy

23346

Key name ...